

EXHIBIT 3

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Honorable Marcia S. Krieger**

Civil Action No. 09-cv-00019-MSK-MEH

UNITED STATES OF AMERICA,

Plaintiff,

v.

CEMEX, INC.,

Defendant.

**DEFENDANT CEMEX, INC. SECOND AMENDED RESPONSES TO UNITED
STATES' FIRST SET OF REQUESTS FOR ADMISSION**

Pursuant to Rule 36 of the Federal Rules of Civil Procedure, Defendant CEMEX, INC. ("CEMEX") responds to Plaintiff United States of America's ("Plaintiff's") First Set of Requests for Admission as follows:

PRELIMINARY STATEMENT

1. CEMEX has not yet completed its investigation of the facts pertaining to this action, and discovery is ongoing. The responses and objections herein are made with respect to information presently known to CEMEX. CEMEX therefore reserves the right to amend or supplement these responses based on subsequently discovered information.

REQUEST FOR ADMISSION NO. 16:

EPA's interim approval of the State of Colorado's Title V Program became effective on February 23, 1995.

RESPONSE TO REQUEST FOR ADMISSION NO. 16:

CEMEX incorporates the general objections set forth above. Without waiving those objections, CEMEX responds as follows: Admit.

REQUEST FOR ADMISSION NO. 17:

EPA's final approval of the State of Colorado's Title V Program became effective on October 16, 2000.

RESPONSE TO REQUEST FOR ADMISSION NO. 17:

CEMEX incorporates the general objections set forth above. Without waiving those objections, CEMEX responds as follows: Admit.

REQUEST FOR ADMISSION NO. 18:

At all times relevant to the United States' First Amended Complaint in Civil Action No. 09-cv-00019-MSK-MEH, the Facility was a "major stationary source" within the meaning of the PSD and NNSR Programs.

RESPONSE TO REQUEST FOR ADMISSION NO. 18:

CEMEX incorporates the general objections set forth above and further objects that this Request calls for a purely legal conclusion. Without waiving those objections, CEMEX admits that the Facility was a "major stationary source" within the meaning of the PSD and NNSR Programs of the State of Colorado.

REQUEST FOR ADMISSION NO. 19:

At all times relevant to the United States' First Amended Complaint in Civil Action No. 09-cv-00019-MSK-MEH, the Facility was a "major stationary source" within the meaning of the Colorado SIP.

RESPONSE TO REQUEST FOR ADMISSION NO. 19:

CEMEX incorporates the general objections set forth above and further objects to the extent that the Request calls for a purely legal conclusion. Without waiving those objections, CEMEX responds as follows: Admit.

REQUEST FOR ADMISSION NO. 20:

At all times relevant to the United States' First Amended Complaint in Civil Action No. 09-cv-00019-MSK-MEH, the Facility was a "major stationary source" within the meaning of the State of Colorado's Title V Program.

RESPONSE TO REQUEST FOR ADMISSION NO. 20:

CEMEX incorporates the general objections set forth above. Without waiving those objections, CEMEX responds as follows: Admit.

REQUEST FOR ADMISSION NO. 21:

The document identified at Bates Number CMXLYO00045592 is a true and accurate copy of a CEMEX document entitled, "Lyons Clinker Production History."

RESPONSE TO REQUEST FOR ADMISSION NO. 21:

CEMEX incorporates the general objections set forth above. Without waiving those objections, CEMEX responds as follows: CEMEX admits that the document identified at Bates Number CMXLYO00045592 is a true and accurate copy of a single page found in CEMEX's business records, and that the words "Lyons Clinker Production History" are written at the top of this

After reasonable inquiry, CEMEX simply does not know whether EPA was notified and therefore cannot admit that it was not.

REQUEST FOR ADMISSION NO. 40:

CEMEX did not seek or obtain a construction permit, PSD or NNSR Permit, Applicability Determination, or Title V Permit from EPA or CDPHE prior to its 1997 alteration of the Facility's calciner.

RESPONSE TO REQUEST FOR ADMISSION NO. 40:

CEMEX incorporates the general objections set forth above and incorporates the objections and response to Request No. 28, and specifically objects that the phrase “1997 alteration” is vague and ambiguous and that the Request is compound. Without waiving those objections, CEMEX responds as follows: CEMEX ADMITS that it did not seek or obtain a construction permit, PSD or NNSR Permit from EPA or CDPHE prior to its 1997 alteration of the combustion chamber specifically for that alteration, but denies that it was legally obligated to do so, and further denies that it did not seek or obtain a Title V Permit prior to its 1997 alteration of the combustion chamber, and after reasonable inquiry, lacks sufficient information to further respond to this Request.

REQUEST FOR ADMISSION NO. 41:

At all times relevant to matters alleged in the United States' First Amended Complaint in Civil Action No. 09-cv-00019-MSK-MEH, CEMEX knew that changes to the Facility's calciner that increased its capacity or throughput would more likely than not require a PSD Permit.

was Amarjit Gill, CEMEX's Director of Air Permitting. Mr. Gill was involved in permitting for the Lyons facility and may have notified EPA of this alleged use of oxygen injection. However, Mr. Gill passed away well before CEMEX received this Request, so it is impossible for CEMEX to confirm with Mr. Gill whether he or someone he supervised notified EPA of this alleged use of oxygen injection. In summary, it is impossible for CEMEX to admit or deny this Request because—under the foregoing circumstances—CEMEX's inability to identify evidence of a telephone conversation, a meeting, or other communication does not mean that such an event did not occur. After reasonable inquiry, CEMEX simply does not know whether EPA was notified and therefore cannot admit that it was not.

REQUEST FOR ADMISSION NO. 103:

Prior to commencing the injection of liquid oxygen into the Pyro-processing System, CEMEX did not seek or obtain a construction permit, PSD or NNSR Permit, Applicability Determination, or Title V Permit from either EPA or CDPHE.

RESPONSE TO REQUEST FOR ADMISSION NO. 103:

CEMEX incorporates the general objections set forth above. Without waiving those objections, CEMEX responds as follows: CEMEX admits that it did not seek or obtain a construction permit, PSD or NNSR Permit from EPA or CDPHE prior to commencing the injection of liquid oxygen into the Pyro-processing System specifically for such injection, but denies that it was legally obligated to do so, and further denies that it did not seek or obtain an Applicability Determination or Title V Permit prior to commencing injection.

REQUEST FOR ADMISSION NO. 133:

The injection of Generated Oxygen into the Pyro-processing System did not reduce the amount of NOx emitted from the Pyro-processing System.

RESPONSE TO REQUEST FOR ADMISSION NO. 133:

CEMEX incorporates the general objections set forth above. CEMEX also objects that the Request is vague and ambiguous as to the time period in question. CEMEX further objects that this Request seeks an opinion that will be based on expert testimony and therefore cannot admit or deny this Request because expert discovery has not yet begun.

REQUEST FOR ADMISSION NO. 134:

The injection of Generated Oxygen into the Pyro-processing System did not reduce the Pyro-processing System's Potential to Emit NOx.

RESPONSE TO REQUEST FOR ADMISSION NO. 134:

CEMEX incorporates the general objections set forth above. CEMEX also objects that the Request is vague and ambiguous as to the time period in question. CEMEX further objects that this Request calls for a purely legal conclusion and therefore is beyond the scope of Rule 36. CEMEX also objects that this Request seeks an opinion that will be based on expert testimony and therefore cannot admit or deny this Request because expert discovery has not yet begun.

REQUEST FOR ADMISSION NO. 135:

The injection of Generated Oxygen into the Pyro-processing System increased the amount of NOx emitted from the Pyro-processing System's [sic].

RESPONSE TO REQUEST FOR ADMISSION NO. 135:

CEMEX incorporates the general objections set forth above. CEMEX also objects that the Request is vague and ambiguous as to the time period in question. CEMEX further objects

that this Request seeks an opinion that will be based on expert testimony, but in any event denies the Request.

REQUEST FOR ADMISSION NO. 136:

The injection of Generated Oxygen into the Pyro-processing System contributed to an increase in the Pyro-processing System's Potential to Emit NOx.

RESPONSE TO REQUEST FOR ADMISSION NO. 136:

CEMEX incorporates the general objections set forth above. CEMEX also objects that the Request is vague and ambiguous as to the time period in question and to the phrase “contributed to.” CEMEX further objects that this Request calls for a purely legal conclusion and therefore is beyond the scope of Rule 36. CEMEX also objects that this Request seeks an opinion that will be based on expert testimony, but in any event denies this Request.

REQUEST FOR ADMISSION NO. 137:

In 2000, CEMEX estimated that the injection of Generated Oxygen into the Pyro-processing System at approximately 52 tons/day resulted in an increase in Facility clinker production of 5.9% per year.

RESPONSE TO REQUEST FOR ADMISSION NO. 137:

CEMEX incorporates the general objections set forth above. CEMEX objects that the Request is vague and ambiguous as to the terms “estimated” and the phrase “resulted in.” Without waiving those objections, CEMEX responds as follows: CEMEX admits that a May 17, 2000 document with the title “Lyons Clinker Production History” at Bates number CMXLYO00045592 states that the “Project Impact” of “Oxygen Enrichment VSA Plant S/U @ 52 t/d Elimination of Liquid” was 5.9%, but denies that this statement represents an estimate by CEMEX.

REQUEST FOR ADMISSION NO. 138:

CEMEX's injection of Generated Oxygen into the Pyro-processing System was a "change in the method of operation" within the meaning of 42 U.S.C. § 7411(a)(4).

RESPONSE TO REQUEST FOR ADMISSION NO. 138:

CEMEX incorporates the general objections set forth above. CEMEX further objects that this Request calls for a purely legal conclusion and therefore is beyond the scope of Rule 36.

REQUEST FOR ADMISSION NO. 139:

CEMEX's injection of Generated Oxygen into the Pyro-processing System was a "physical change" within the meaning of 42 U.S.C. § 7411(a)(4).

RESPONSE TO REQUEST FOR ADMISSION NO. 139:

CEMEX incorporates the general objections set forth above. CEMEX further objects that this Request calls for a purely legal conclusion and therefore is beyond the scope of Rule 36.

REQUEST FOR ADMISSION NO. 140:

CEMEX did not seek or obtain a construction permit, PSD or NNSR Permit, Applicability Determination, or Title V Permit from either EPA or CDPHE for the VSA Plant prior to the construction of the VSA Plant.

RESPONSE TO REQUEST FOR ADMISSION NO. 140:

CEMEX incorporates the general objections set forth above. Without waiving those objections, CEMEX responds as follows: CEMEX admits that it did not seek or obtain a construction permit, PSD or NNSR Permit from EPA or CDPHE prior to construction of the VSA Plant specifically for the VSA Plant, but denies that it was legally obligated to do so, and further denies that it did not seek or obtain an Applicability Determination or Title V Permit prior to construction of the VSA Plant for the VSA Plant.